



POLICE DEPARTMENT

March 13, 2013

MEMORANDUM FOR: Police Commissioner

Re: Detective Nelson Colon
Tax Registry No. 905983
113 Precinct Detective Squad
Disciplinary Case No. 2012-8055

The above-named member of the Department appeared before me on January 23, 2013, charged with the following:

1. Said Detective Nelson Colon assigned to the Forensic Investigation Division, while off-duty, on or about May 29, 2012, in the confines of Suffolk County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer engaged in a physical altercation with his wife, Person A.

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS
PUBLIC CONTACT

2. Said Detective Nelson Colon assigned to the Forensic Investigation Division, while off-duty, on or about May 29, 2012 and May 31, 2012, in the confines of Suffolk County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer caused the locks to his residence to be changed, preventing his [REDACTED] Person A, from gaining entry to their shared [REDACTED] residence.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
PUBLIC CONTACT

3. Said Detective Nelson Colon assigned to the Forensic Investigation Division, while off duty, on or about May 29, 2012, in the confines of Suffolk County, failed to notify the Operations Unit of his involvement [sic] in a domestic incident with his [REDACTED] Person A. (*As amended*)

P.G. 212-32, Page 1, Paragraph 2, Note – COMMAND OPERATIONS OFF DUTY
INCIDENTS INVOLVING UNIFORMED
MEMBERS OF THE SERVICE

The Department was represented by Rudolph Behrmann, Esq., Department Advocate's Office, and Respondent was represented by James Moschella, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Anthony Bocola.

Sergeant Anthony Bocola

Bocola has been assigned to the Chief of Detectives Investigations Unit for approximately seven and a half years. He investigates allegations of misconduct against members assigned to the Detective Bureau.

On June 5, 2012, he was assigned a case involving an off-duty domestic dispute between Respondent and wife, Person A on May 29, 2012. Bocola reviewed a preliminary investigation done by the Patrol Borough Queens North Investigations Unit (PBQN IU). He reviewed PBQN IU's documents, which included a copy of the report prepared by the duty captain, and a recorded interview of Person A.

The following summary is based on Bocola's review of what Person A said in her interview:

Person A and Respondent argued in their home about the dishes that were being washed by Respondent's daughter. Respondent pushed her, she pushed back, Respondent became angry and then struck her in the face. Person A ran down the hall towards the daughter's bedroom and said in substance, "Your father punched me because of you," and then she pointed to her cheek. Later, Person A called her mother. Shortly after that call, she left and went to her mother's house in Queens.

On June 22, 2012, Bocola spoke with Person A about the incident. Person A "basically recanted her statement and . . . said that [Respondent] did not hit her. She also said that she caused the injury to herself. The injury she was referring to "was a small cut behind her left ear."

In response to the Court's question about the reason that Person A hurt herself, Bocola replied, "She said after she had left the residence, she was in her car, was very upset and very mad, and she was out of control, and she hit herself and caused the injury."

Bocola was not present at the callout stage of this incident. Bocola learned that Person A stayed at her mother's the night of the incident. She returned to her home on May 31, and was not able to gain access. Person A said that all the locks on the house were changed. Bocola did not believe that Person A was ever able to gain access to the house on that day.

Person A said that she returned to the residence on June 1. The door was open, she went in, and retrieved some belongings. Then Respondent gave her a set of keys and

she left.

Bocola confirmed that on May 29, 2012, Respondent did not notify the Department about the incident between Person A and himself.

As part of his investigation, Bocola interviewed Respondent. Respondent told him that he did not strike or hit Person A at all. He said that during the argument Person A "got in his face." Bocola believed that Respondent said she pushed him up against the counter. Respondent said he had put his hand on her shoulder to move her out of the way so he could pass. He denied hitting Person A.

Respondent said that after their argument, Person A made some phone calls. He heard her telling someone on the phone that he had hit her. Bocola did not think that Respondent knew with whom Person A was speaking.

Bocola confirmed that although Respondent heard Person A saying on the phone that he hit her, Respondent did not notify the Department.

Bocola reiterated what Person A told him by telephone on June 22, 2012. Person A had stayed at her mother's and returned to the residence on May 31. She was not able to gain access to the home because all the locks were changed. She was given keys when she had returned on June 1. The second time she went to the house, she got some clothing or some personal items, and was given a set of keys.

On cross-examination, Bocola confirmed that during his interview with Person A on June 22, she made clear that Respondent did not strike her on May 29, 2012. Bocola also confirmed that she did say that there was an argument between the two of them. Bocola agreed that Person A admitted that the statements that she made initially about the incident were not true. Bocola agreed that Person A concurred with Respondent's

description of what happened during the argument. Bocola confirmed that, according to both Person A and Respondent, there was no striking or punching.

Bocola verified that Person A told him that she believed that Respondent was kicking her out of the house. She said that she was mad and out of control that night. Bocola reiterated that Person A used the exact words, "Out of control."

Bocola confirmed that Person A never called 911 that night, but that Person A's mother did.

On redirect examination, Bocola explained that Person A's mother called 911 and was asking questions about what to do if an NYPD detective hits his wife. The conversation "went on back and forth." Bocola said, "They did have a few interpreters from 911, and eventually a patrol supervisor was dispatched to the mother's residence in Queens due to the fact that the mom said that Person A had called her and was on her way to her mom's house."

In response to the Court's questions, Bocola said he did listen to the 911 tape.

When asked if the mother ever said that Respondent hit Person A, Bocola said no.

Bocola was recalled and on further redirect examination, Bocola reconfirmed that he interviewed the Respondent on June 22. Bocola thought that PBQN IU conducted an interview of Respondent on the night of the incident.

Bocola stated that before his interview with Respondent, no one else interviewed Respondent and that there was no interview of Respondent conducted by the Investigations Unit on the night of the incident. He stated that he was the only person who interviewed Respondent. When again asked whether any member of the service

interviewed Respondent about this incident, Bocola replied, "As a formal interview, to my knowledge, no."

On re-cross examination, Bocola agreed that he meant that before Bocola's official Department interview of Respondent no other member of the service had conducted a formal interview of Respondent. Bocola agreed that often, especially during a callout, investigators need to find out what happened. Bocola acknowledged that during a callout, a conversation with the detective, would typically include an informal gathering of facts.

Bocola confirmed the following: When Bocola was assigned to the case, Respondent had been placed on modified assignment on May 30 by PBQN IU. On the day that members of the service are modified, their gun, their shield, and ID are taken. Typically, the very next business day they have to go to One Police Plaza to the ID Card [Unit], which is on Bocola's floor, the fifth floor. This unit is right around the corner from Chief of Detectives Investigation Unit.

Bocola believed that the ID Card Unit is where members get their new ID cards to show they do not possess firearms. Bocola confirmed that this procedure is usually done the very next business day after the modification takes place.

Respondent's case

Respondent testified on his own behalf.

Respondent

Respondent has been assigned to the Forensic Investigations Division for two years. As a detective, he works for the Liaison Unit between the Department and the OCME, the Office of Chief Medical Examiner's Office. He has held the rank of detective for approximately 12 years and been a member of the Department for 20 years. He has never before been the subject of any formal disciplinary action by the Department. Because of this case he has been on modified assignment since about May 30, 2012.

On May 29, 2012 Respondent had been [REDACTED] Person A for two years. They lived together in [REDACTED], New York with her four-year-old son, Minor C and his 14-year-old daughter, Minor B.

Respondent explained that night they had finished dinner. Minor B got up from the table, put her wash into the washing machine, and washed whatever plates and forks and knives were in the sink. Respondent confirmed that these were some of Minor B's daily house chores. She took some time to do the dishes, then put them away. After that, she left and took a shower.

When Minor B was washing the dishes, Respondent was eating at the dinner table; Person A was also in the kitchen cleaning up and putting pots and pans away. When Respondent finished his salad, he went to the sink and washed his dish.

Person A came over and saw that there was a knife and a fork with food on them. She said, "Minor B can't do shit right."

Respondent looked at her and said, "You know, you don't have to speak that way."

Person A repeated, "Minor B can't do shit."

Respondent told her, "You know, there are other ways of saying things if you want to speak like that about the children." Respondent said he was disappointed because "this is my daughter. This is, you know, not just anyone that she can speak that way about."

Person A started yelling, "Why? Because it's Minor B. Is that why? Because it's Minor B?"

Respondent said, "No, it's not because it's Minor B. Because when you blurted out things to that effect with Minor B, I defended him as well. So there is no reason to talk about the children, or to the children, in that way, in that manner."

Respondent explained that they were speaking mostly in Spanish, which is his ■■■■■'s first language. During this conversation, Minor B was in the shower and Respondent believed that Minor B was in his room.

Respondent described that Person A came towards him. He put the dish down, and said, "Well, if you don't like the way, you know, she does the dishes, then do them yourself."

Person A exploded. Respondent explained, "She got in my space. She came, she placed her body up against mine, and my ■■■■■ isn't very tall, she is about five foot two. She started screaming up in my face." Respondent is about five foot ten. Person A started screaming and complaining about Minor B.

They had never had an argument about Minor B before. Respondent testified, "We really all get along very well."

While Person A was yelling at him, he was backing up to try to get some space between them. She kept walking towards him. Again, she pressed her body up against his. With his chest or stomach, he tried to bump her off him to gain some space. But because his [REDACTED] kept coming toward him and he was walking backwards, he got pressed up against the granite countertop. Respondent said that Person A's chest and torso were touching his body. Person A did not strike, kick, punch or hit him.

When he was pressed against the countertop, Respondent put his right hand on Person A's left shoulder and moved her to the side. Respondent said that she resisted. He then pushed harder, went around her and walked away towards the living room.

When he put his hand on her shoulder, she moved no more than six inches to the left. When he moved her, Person A did not stumble, fall or lose her balance. Respondent testified that he never kicked, struck or punched her.

As Respondent was walking towards the living room, Minor B came out of the bathroom and was walking to her room. Person A ran up to her from the kitchen and they met right in front of Minor B's bedroom door. Minor B was caught by surprise. Person A said to her, "This is all your fault, your father punched me in the face because of you." Minor B did not say anything. She seemed confused about what was going on.

When asked by his attorney if he had punched Person A in the face, Respondent said, "Yes." When his attorney repeated the question, Respondent said, "No." When his attorney asked him if he knew why Person A was saying that he punched her, Respondent said, "No, I was surprised that she even said that I punched her."

Respondent told Minor B, "Don't argue, go in your room, and I will tell you when it's okay to come out. Just go in your room." Then he told Person A, "I think it's best

that you go to your mother's tonight." He said that "to defuse the tension in the home." He did not feel that Person A would have been calm for the rest of the night. The children were involved and he thought they would be "nervous the entire night."

He felt that what Person A had just said to Minor B was "uncalled for, just out of control."

Person A said, "Are you throwing me out?"

Respondent said, "No, I am not throwing you out, but I think it's better."

Then Person A began to pack suitcases. She packed two large suitcases and a large duffle bag. Before and after she gave Minor B a bath, she was talking on the phone. Meanwhile, Respondent was in the living room. He turned on the television, and sat on the sofa. There was no further argument between them.

About an hour after their argument in the kitchen, Person A left with Minor B and her packed bags. Respondent estimated that the argument happened somewhere between 8:00 p.m. and 8:30 p.m.

Respondent saw Person A before she left their home. She did not have any marks, redness, or swelling on her.

Respondent believed that the phone calls he heard Person A make were to her mother. Person A did not call 911. The police did not respond to Respondent's house that night.

After Person A left, Respondent did not notify the Department about this argument with his [REDACTED]. He did not feel that notification was necessary, because the argument was verbal and was defused.

At about 3:30 a.m., PBQN IU came to his door. They asked Respondent what happened, but he did not tell them. The following day he was formally interviewed.

Suffolk County police did not come to the house. There was no criminal or family court complaint that he had to answer. After Person A left, Respondent, who was on vacation, just stayed home.

The next morning, May 30, before she left for school, Minor B asked him about what happened. He explained about Person A's reaction to the knife and fork. Minor B told him that she was nervous that Person A "would come back and physically discipline her." Respondent believed that he sent Minor B to school, and then he picked her up and brought her home after school.

In the conversation Respondent had with her that morning, Minor B explained that about a year earlier she saw Person A strike Person A's younger sister because of an argument. Minor B told Respondent, "What if she does that to me? She is going to do that to me, she is angry at me. So she will, you know, come in and start hitting me."

Respondent reassured Minor B that that was not going to happen, told her to go to school, relax and do her schoolwork. Then he went to Home Depot, bought a new set of locks and changed the locks to the front door. He did this because he was called by PBQN IU to be interviewed. He knew that he would have to leave the house and that Minor B "would be at some point in time alone." He changed the locks so that Minor B would not have to worry about Person A bursting into the house and coming after her.

He had three sets of keys to the new locks. The third set he intended to give to Person A as soon as he saw her. He never intended to prevent her from ever coming home.

By the end of July, Person A returned to their home. Respondent and Person A are still [REDACTED] and living together. Respondent agreed that it took about two months apart to sort things out.

After the night of their argument, the next time that Respondent saw Person A was on June 1. On that day he gave her the keys. When Respondent changed the keys, he did not believe that Person A was coming back for a while.

Since May 29, 2012, there have been no more arguments or incidents between Respondent and Person A. The relationship between Person A and Minor B is now back to normal. Respondent said, "They love each other. It was just an unfortunate point intime."

On cross-examination, Respondent agreed that he had an argument with Person A on May 29 because she disparaged his daughter. Respondent admitted that he was disappointed and little bit angry, because Person A devalued his own flesh and blood.

Respondent confirmed that during his argument with Person A, Person A was yelling at and pushing up against him. He denied that he pushed her back or away when she was backing him up against the countertop. He explained that he was backing away.

When asked whether it was possible that when he put his hand on her shoulder and moved her that he scratched her, Respondent said, "I don't believe so." He also denied that it was possible that his gesture caused her earring to scratch her.

The Court asked Respondent why he did not think this could have happened. Respondent explained that his putting his hand on her shoulder and "the force of my moving her to the side did not cause my hand to hit her in the face."

Respondent confirmed that not only was Person A yelling at him, but that he was yelling at her. He heard Person A accuse him of striking her to his daughter. Respondent agreed that when he told Person A that she should spend the night at her mother's, Person A asked him if he was kicking her out. After she accused him of throwing her out of the house, she was on the phone talking to someone. Respondent acknowledged that it did occur to him that she was telling someone in the same way she told his daughter that he hit her. Respondent volunteered that he heard Person A actually tell someone on the phone that he hit her.

When asked in substance should he have not notified the Department that his [REDACTED] was accusing him of domestic violence to other parties, Respondent replied, "No, I don't think that at that point it's fair to say that I should have called Operations." When asked why not by the Court, Respondent said that the Department "wasn't the first thing on my mind. At that point, it was the situation that brought me into that argument." He explained that he was thinking about his daughter, his stepson and "everybody's welfare, and not the police department." He did not think that calling the Department made any sense.

When asked if he knew who she was speaking to on the phone when she made accusations against him, Respondent said he "knew that it might have been her mother." When asked by the Court why he thought that, he said that Person A and her mother "speak numerous times during the course of the day on a normal day." Respondent believed that her normal reaction would be to call her mother.

When asked that given how close Person A is to her mother, would it not be possible that what Person A was saying to her mother would have been relayed to the

Department, Respondent replied no. When asked again, Respondent explained that he did not believe that it was possible. When asked why not by the Court, Respondent explained that Person A never told her mother to call the Department. She was just speaking about the argument.

Respondent agreed that he first learned the following day, in the middle of the night, that the Department was involved

Respondent agreed that he stated that he changed the locks to appease his daughter and that he was on vacation that whole week. He agreed that the following day his daughter was going to be away at school and not at home. He also conceded that when she came home from school, he was going to be available. When asked if he changed the locks on the apartment because he believed his [REDACTED] was not coming back, he said no.

In response to a question from the Court, Respondent clarified that he believed that Person A “wasn’t coming back long term.” When asked why not by the Court, Respondent replied, “Well, because of the nature of the incident, I, you know, I truly believed that my [REDACTED] wasn’t going to come back. I am not saying at all, I just didn’t believe that she was coming back within the next few days.” Respondent testified that he wanted his [REDACTED] to come back.

Respondent stated that he did not contact Person A to tell her that he was changing the locks because he was told by PBQN IU not to contact her.

Respondent knew of no incidents between Person A and his daughter. Respondent clarified that the incident Minor B referred to happened between Person A and Person A’s younger sister. At the time of the incident Person A’s sister was 14 and the incident took

place a year earlier. Respondent confirmed that Minor B had never complained to him about Person A being physical with her. He agreed that when Minor B came out of her room during the argument between Respondent and Person A, Respondent directed her to go to her room. After Person A left, Respondent explained to Minor B that the argument was about the knife and fork being dirty. Respondent acknowledged that Minor B was responsible for cleaning the knife and fork because she was the one that picked up the dishes to wash them. Respondent agreed that he told Minor B that the argument started because she did not clean a knife and a fork.

Respondent denied that he struck Person A in the face because she disparaged Minor B. Respondent denied striking Person A because he was angry at her.

The next morning, on May 30, Respondent told his immediate supervisor about the incident and that PBQN IU had come to his home and removed his firearms and shield. He did not tell his supervisor that he was changing the locks because "that had happened already. I had already had the conversation with my supervisor about the incident, so I didn't call them again to tell them that I had changed the locks and for what reason I changed the locks." He did not think it was important to do that because he "was intending to give the keys to Person A. I just didn't want, during the time that I was here being interviewed, for Person A to take a chance and burst into the house with Minor B being there by herself."

Respondent said that he came to One Police Plaza and was interviewed by Sergeant Bocola on May 31.

He agreed that because he is [REDACTED] Person A and she lives with him, she

is entitled to enter in and out of her own home without obstruction. Respondent conceded that he prevented Person A from entering her home when he changed the lock.

On redirect examination, Respondent said that when he was interviewed by Bocola on May 31, he told Bocola that he had changed the locks and explained why. Respondent reconfirmed that it was never his intention to prevent Person A from coming home. He also reconfirmed that by June 1, Person A had the keys. While he had been told by PBQN IU not to contact Person A, no formal order of protection was ever issued, the incident never came before a family court or criminal court and the Suffolk County Police Department never responded to his home. Only the investigators from the Department came to his house. After they came, he notified his immediate supervisors, Sergeant Simona and the Deputy Inspector Katranakis. Since May 30, 2012, Respondent has been on modified assignment status without his gun and shield.

FINDINGS AND ANALYSIS

Specifications No. 1 and No. 3

Specification No. 1 charges that on May 29, 2012, Respondent engaged in a physical altercation with his [REDACTED] Person A. Specification No. 3 charges that on or around May 29, 2012, Respondent failed to notify the Operations Unit of the domestic dispute he had with his [REDACTED]

The only testimony about these specifications comes from an interview of Person A the night of the alleged incident. Sergeant Anthony Bocola testified about his review of that interview. But he did not conduct that interview, nor was he present for it.

Although the transcripts and audio tapes of the interview were available, the Department did not offer them into evidence. The Advocate asserted that the delay between the incident and the complainant's interview rendered her statement inadmissible as an excited utterance. If this defect was so great that it prevented the Department from submitting the complainant's initial interview, that same defect applies to Bocola's testimony about that interview.

Bocola referred to a 911 call. However, because that call was made by Person A's mother, and not by Person A, the Department did not offer the tape of that call into evidence. Even after the 911 call, Respondent was never arrested.

The Department did not present any evidence of injury or that Person A sought medical treatment.

Bocola also testified about his interview with Person A on June 22, 2012. Person A told Bocola that she made up the allegation because she felt that Respondent was kicking her out of their home. She also said that she injured herself. After she left the home, she was so upset and "out of control" that she hit herself in the car.

The only live witness to what happened between Respondent and Person A was Respondent. Respondent testified that the argument between Person A and him was only verbal. He testified, "She got in my space . . . placed her body against mine" and then "started screaming up in my face." Person A kept walking toward him so that Respondent became pressed up against the countertop and their torsos were touching. At one point he tried unsuccessfully to bump her off him with his chest or stomach. Finally, he put his right hand on Person A's left shoulder and moved her to the side. When she resisted him, he pushed harder and walked around her. Respondent denied ever striking Person A.

The Department having failed to present sufficient evidence, Respondent is found Not Guilty of Specification No. 1.

As Respondent has been found Not Guilty of having a physical altercation with his [REDACTED] Respondent had no duty to notify the Department. Therefore, Respondent is found Not Guilty of Specification No. 3.

Specification No. 2

Specification No. 2 charges that between May 29, 2012 and May 31, 2012, Respondent changed the locks to his residence, preventing his [REDACTED] Person A, from gaining entry to their shared [REDACTED] residence.

Bocola testified that Person A told him that when she returned to her home the day after the incident, she was unable to gain access to her home. She said that the locks had been changed.

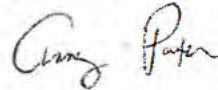
Person A also told Bocola that when she returned to her home a second time, two days after the incident, the door was open. She went inside and retrieved some belongings. Then Respondent gave her a set of keys and she left.

Respondent explained that he changed the lock the next day because he wanted to reassure his daughter who was afraid of being alone with Person A. He said he did not really expect Person A to come by the next day. He intended to and did give his [REDACTED] the keys. He never intended to prevent her access. He could not call Person A about changing the locks because, after the complaint had been made, Department investigators advised him not to have contact with Person A.

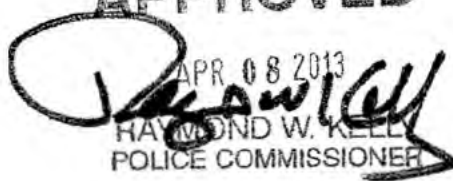
Two months after this incident, Person A moved back in with Respondent and they continue to live together as [REDACTED].

No evidence was presented that after Respondent gave her the new keys that Person A was ever unable to enter her home again. Person A did not appear to testify against her [REDACTED] about this one time inconvenience. Therefore, Respondent is found Not Guilty of Specification No. 2.

Respectfully submitted,



Amy J. Porter
Assistant Deputy Commissioner - Trials

APPROVED
APR 08 2013

RAYMOND W. KELLY
POLICE COMMISSIONER